

HOUSE No. 2132

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to commission sales rates.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/15/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/31/2025</i>

HOUSE No. 2132

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 2132) of Bradley H. Jones, Jr. and others for legislation to establish a special commission (including members of the General Court) to study issues relative to commission sales rates. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1906 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to commission sales rates.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 There shall be a special task force to review and report on the economic impact of sales
2 commission rate structures to ensure fairness, transparency, and equality in the payment for
3 commissioned workers in the Commonwealth. The task force shall consist of 9 members: the
4 house and senate chairs of the joint committees on labor and workforce development economic
5 development and emerging technologies, or their designees, who shall serve as the co-chairs of
6 the task force; a member of the general court appointed by the senate minority leader; a member
7 of the general court appointed by the house minority leader; the executive director of the
8 Massachusetts Workforce Development Board, or a designee; the Massachusetts attorney
9 general, or a designee; and 3 persons to be appointed by the secretary of labor and workforce
10 development, 1 of whom shall be an employee of the commonwealth in the office of the

11 secretary of labor and workforce development, 2 of whom shall be selected from a list of 5
12 persons nominated by the Massachusetts Business Roundtable.

13
14 The task force shall: (i) identify and review the state laws, regulations, and administrative
15 directives that are related to commission sales rates; (ii) identify the key labor sectors that would
16 best benefit from a review and improvement to sales commission rates; (iii) require the
17 department of labor and workforce development to create a report based on a customized survey
18 of companies within the commonwealth who employ commission-based employees; and (iv)
19 develop recommendations to establish legislative procedures to provide and regulate commission
20 rate income in Massachusetts.

21 The task force shall submit a report, including any draft legislation and regulations, to the
22 clerks of the house of representatives and the senate within 12 months of the passage of this act.